

**Supreme Court of the State of New York
County of QUEENS**

RODERICK BRUNSON,

Plaintiff,

against

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICERS JAMES SARVIS,
BRIAN NELSON, JAMES RICHARDSON, BRIAN GRANSHAW,
and POLICE OFFICERS "JOHN (JANE)
DOE NO. 1" THROUGH "JOHN (JANE) DOE NO. 10"
inclusive, the last ten names being
fictitious and unknown to the Plaintiff,
the persons intended being involved in
wrongful acts against the Plaintiff on
or about and between August 1, 2021 and
March 18, 2022,

Defendants.

Index No.**Plaintiff designates**

QUEENS

County as the place of trial**The basis of the venue is**

place of occurrence

Summons**Plaintiff resides at**

114-40 168 Street

Jamaica, NY

County of Queens**To the above named Defendant**

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated, November 19, 2022**Defendant's address:**

City of NY: 100 Church Street, NY, NY

NYPD and individual police officers:

1 Police Plaza, New York, NY



BARRY M. GOLDSTEIN

Attorney(s) for Plaintiff**Post Office Address**

125-10 Queens Boulevard

Suite 223

Kew Gardens, NY 11415

(718) 544-7100

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS
----- x

RODERICK BRUNSON,

Plaintiff

Index No.:

- against -

COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICERS JAMES SARVIS,
BRIAN NELSON, JAMES RICHARDSON, BRIAN GRANSHAW,
and POLICE OFFICERS "JOHN (JANE)
DOE NO.1" THROUGH "JOHN (JANE) DOE NO. 10"
inclusive, the last ten names being
fictitious and unknown to the Plaintiff,
the persons intended being involved in
wrongful acts against the Plaintiff on
or about and between August 1, 2021 and
March 18, 2022,

Defendants.
----- x

The Plaintiff, complaining of the Defendants, by his
attorney, BARRY M. GOLDSTEIN, respectfully shows to this Court and
alleges:

1: Upon information and belief, that at all times
hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and
still is a municipal corporation duly organized and existing under
and by virtue of the laws of the State of New York,
including all the police officers thereof.

2: Upon information and belief, that at all times
hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, its
agents, servants and/or employees operated, maintained and
controlled the Police Department of the City of New York, including

all the police officers thereof.

3: Upon information and belief, that at all times hereinafter mentioned, and on or prior to August 1, 2021, each of the Defendant identified as named an unknown "police officers", were employed by the Defendant, THE CITY OF NEW YORK, as police officers.

4: That Notice of the Plaintiff's Claim and Notice of Intention to Sue for Damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon Comptroller of the Defendant, THE CITY OF NEW YORK, et al, on or about June 9, 2022.

5: That no 50(h) hearing, pursuant to the General Municipal Law has been held to the present time.

6: That more than 30 days have elapsed since the Notice of Claim and Intention to Sue has been served upon the Defendants and the said Defendants have neglected or refused to make any adjustment or payment thereof.

7: That this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

8: The Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs marked 1 through 7 with the same force and effect as if more fully set forth herein.

9: That on or about the August 23, 2021, the Defendants, their agents, servants and/or employees forcibly, wrongfully and falsely detained, searched, arrested, imprisoned and detained Plaintiff, without any right or grounds thereof.

10: That on or about the August 23, 2021, the Defendants wrongfully and falsely detained, searched, arrested, imprisoned and detained Plaintiff, for crimes unknown to the Plaintiff, and that Plaintiff was later charged with Attempted Murder in the Second Degree; Assault in the First Degree; Attempted Assault in the First Degree; Criminal Possession of a Weapon in the Second Degree and Criminal Possession of a Firearm.

11: That, upon information and belief, the said detention, search, arrest and imprisonment was caused by the Defendants, their agents, servants and/or employees, without any warrant or other legal process involving him, and without authority of the law and without any reasonable or probable cause or belief that the Plaintiff was in fact guilty of any crime.

12: That the Defendants, their agents, servants and employees, wrongfully and unlawfully, against the Plaintiff's wish without probable or reasonable cause, detained, searched and arrested and imprisoned the Plaintiff and with full force of arms, they forcibly and violently seized, assaulted and laid hold of him and compelled him to go with said Defendant Police Officers, and then to be detained and imprisoned at divers places, including, but not limited to the NYPD precinct, Central Booking of Queens County, and in a detention cell located in the Criminal Court Building at Queens Boulevard, Kew Gardens, County of Queens State of New York, where the Plaintiff was further detained and imprisoned until such time as he was arraigned before a Criminal Court Judge on the aforesaid charges, and the Plaintiff was thereafter held at the detention facilities until his eventual release on or about October 1, 2021, and the dismissal of all charges by the Court on or About

March 15, 2022 upon a determination by the Court, that the Defendants acted without reasonable or probable cause to detain, search and arrest and imprison the Plaintiff.

13: That the Defendants, their agents; servants and employees acting within the scope of their authority and within the scope of their employment, detained, searched and imprisoned the Plaintiff even though the Defendants, their agents, servants and employees, had the opportunity to know or should have known that the matters hereinbefore were alleged, wrongfully, unlawfully and without a sufficient charge having been made against the Plaintiff, directed that the Plaintiff be placed and held in confinement at said locations; and that the Defendants had no probable or reasonable cause to detain, search or arrest the Plaintiff.

14: That the Plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the Defendants, their agents, servants and employees and was forced by the Defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

15: That as a result of the aforesaid accusations made by the Defendants, their agents, servants and employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the Plaintiff was compelled to be imprisoned at precinct, central booking, and was compelled to appear before a Judge(s) of the Criminal Court of the City of New York and the the Supreme Court of the State of New York, County of Queens and to be arraigned and thereafter confined at detention facilities.

16: That the Defendants, their agents, servants and

employees, as set forth aforesaid on the aforementioned dates, times and places, intended to confine the Plaintiff; in that the Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

17: That by reason of the false arrest, imprisonment and detention of the Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in his reputation, credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer much pain in both mind and body, and suffered other losses including the loss of personal property.

18: That by reason of the aforesaid, the Plaintiff has been damaged in a sum that is in excess of the monetary jurisdiction of all other lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

19: Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs marked 1 through 18 with the same force and effect as if more fully and at length set forth herein.

20: That the Defendant, THE CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, the above named police officer defendants, as well as POLICE OFFICERS "JOHN (JANE) DOE NO. 1" through "JOHN (JANE) DOE

NO. 10", in that, upon information and belief, the said Defendant employees lacked the experience, deportment and ability to be employed by the Defendant; in that the Defendant, CITY OF NEW YORK, failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who, upon information and belief, lacked the mental capacity and the ability to function as employees of the aforementioned Defendant; in that the Defendant, THE CITY OF NEW YORK, failed to investigate the above named Defendants' background and in that they hired and retained as employees of their Police Department individuals who, upon information and belief were inclined to improper behavior; in that the Defendants, upon information and belief, lacked the maturity, sensibility and intelligence to be employed by the Defendant, CITY OF NEW YORK, their agents, servants and/or employees were otherwise careless, negligent and reckless.

21: That the aforesaid occurrence, to wit: the false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and/or employees without any negligence on the part of the Plaintiff.

22: That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain and anguish, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities

and humiliation foisted upon him by the actions of the Defendants, their agents, servants and/or employees, including counsel fees and disbursements, and, upon information and belief, will expend further sums, and the Plaintiff has been otherwise damaged.

23: That by reason of the aforesaid, the Plaintiff has been damaged in a sum that is in excess of the monetary jurisdiction of all other lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

24: Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs marked 1 through 23 with the same force and effect as if more fully and at length set forth herein.

25: That the Defendant, CITY OF NEW YORK, their agents, servants and/or employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named Police Officer Defendants, as well as POLICE OFFICERS "JOHN (JANE) DOE NO. 1" through "JOHN (JANE) DOE NO. 10", in that they failed to train their employees in the proper method of conducting an investigation; in the proper method of detaining a person; in the proper method of establishing reasonable and probable cause to detain and search; and to otherwise act as reasonably, prudent Police Officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their employers; and, in that the Defendants, their agents, servants and/or employees were otherwise reckless, careless and negligent.

26: That the aforesaid occurrence, to wit: the false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and/or employees without any negligence on the part of the Plaintiff.

27: That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the Defendants, their agents, servants and/or employees, including counsel fees and disbursements, and, upon information and belief, will expend further sums, and the Plaintiff has been otherwise damaged.

28: That by reason of the aforesaid, the Plaintiff has been damaged in a sum that is in excess of the monetary jurisdiction of all other lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

29: Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs marked 1 through 28 with the same force and effect as if more fully and at length set forth herein.

30: That the Defendants, their agents, servants

and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful Police Officer would have used under similar circumstances in that they carelessly, recklessly and negligently detained, searched and arrested the Plaintiff without making a proper investigation, in that they were negligent, careless and reckless in the manner in which they detained the Plaintiff; and in that the Defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

31: That the aforesaid occurrence, to wit: the false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and/or employees without any negligence on the part of the Plaintiff.

32: That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the Defendants, their agents, servants and/or employees, including counsel fees and disbursements, and, upon information and belief, will expend further sums, and the Plaintiff has been otherwise damaged.

33: That by reason of the aforesaid, the Plaintiff

has been damaged in a sum that is in excess of the monetary jurisdiction of all other lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF

34: That on or about August 23, 2021, at the 113 Precinct of the NYPD, County of Queens, State of New York and at subsequent times thereafter, the City of New York and the New York City Police Department, its agents, servants and employees maliciously prosecuted the claimant without just cause or grounds therefor: in that the City of New York and the New York City Police Department, their agents, servants and employees, acting in the performance of their employment searched and arrested claimant without probable cause, and without any justification, executed false complaints and affidavits and withheld vital information before a judge of the Criminal Court of the City of New York, Queens County.

35: That on or about April 29, 2009 a judge of the Supreme Court of the State of New York ruled that the charges against the claimant were dismissed in their entirety as there was no evidence presented that the claimant was present or involved at the time a crime was committed. Accordingly, the arrest of the claimant was without probable cause. All charges against the claimant were dismissed on or about March 15, 2022 in Part TAP A of the Criminal Term of the Supreme Court of Queens County.

36: That there was a dismissal of proceedings in favor of claimant and that there was an absence of probable cause for the criminal proceedings and actual malice by the City of New York and

the New York City Police Department, their agents servants and employees.

37: That by reason of the aforesaid, the Plaintiff has been damaged in a sum that is in excess of the monetary jurisdiction of all other lower courts that would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

38: Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs marked 1 through 33 with the same force and effect as if more fully and at length set forth herein.

39: That on or about August 23, 2021 Plaintiff, was unlawfully arrested and detained by the named police officer Defendants)and/or unknown "John Doe" and "Jane Doe" police officer defendants,

40: That at the aforesaid time and place, the aforementioned Defendants, their agents, servants and/or employees falsely detained, searched and arrested and imprisoned the Plaintiff, and deprived him of his rights and liberties as set forth in the Constitution of the United States and of the State of New York, handcuffed him and imprisoned him without any conduct on the part of the Plaintiff to so warrant to wit:

(a) in that all of the actions of the Defendants, their agents, servants and/or employees, were committed with the intention to cause mental injury to the Plaintiff, to detain, search, arrest, restrain and imprison the Plaintiff without his consent, the

Plaintiff was at all times conscious of his arrest, did not consent to the false arrest and the false arrest and imprisonment were not otherwise privileged: and,

(b) the arrest and imprisonment were not justified by probable cause or other legal privilege; Defendants, their agents, servants and/or employees, acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as Police Officers for said City, falsely charged the Plaintiff with a crime although the Defendants, acting in such capacity, knew that such charges were false and could not be sustained; and,

(c) that the Defendants, their agents, servants and/or employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants; and,

(d) the failure of the Defendants, their agents, servants and/or employees to hire, train, supervise, discipline or in any other way control the Defendants, in the exercise of their functions; in that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including Plaintiff; and,

(e) due to the acts of the Defendants, their agents, servants and/or employees, the failure of the City of New York to discipline and properly hire the Defendants and the continued employment of the Defendants presents a clear

and present danger to the citizens of the City and State of New York; and,

(f) that the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause with actual malice and was terminated in favor of the Plaintiff; and

(g) that the Defendants, their agents, servants and/or employees permitted the use of policy and/or drafted policy that was violative of the constitutional rights of the above named Plaintiff; and, in that each and all of the acts of the Defendants, their agents, servants and/or employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the authority of their office as Police Officers for said city and county.

41: Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

42: As a direct result of the illegal actions and conduct on the part of the Defendants, their agents, servants and/or employees, Plaintiff was falsely detained, searched, arrested and imprisoned, maliciously prosecuted and compelled to be arraigned and appear in Criminal Court in the City of New York, County of Queens and to undergo a criminal proceeding until all

charges were dismissed, in Supreme Court, Queens County on or about March 15, 2022

43: That at all times hereinafter mentioned, the Defendants were employed in their respective capacities by the Defendant THE CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

44: That at all times hereinafter mentioned, Defendants, the named police officers herein , as well as POLICE OFFICERS "JOHN (JANE) DOE NO. 1" through "JOHN (JANE) DOE NO. 10" were acting pursuant to orders and directives from Defendant, THE CITY OF NEW YORK.

45: That during all times hereinafter mentioned, the Defendant Police Officers and each of them, separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and the Defendants here, separately and in concert, engaged in the illegal conduct here mentioned to the injury of the Plaintiff, and deprived Plaintiff of the rights, privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States;

46: The Police Officers of the Defendant THE CITY OF NEW YORK and its individual members who are agents, servants and employees of Defendants, together with persons unknown to Plaintiff, acting under color of law, have subjected Plaintiff and other persons to a pattern of conduct consisting of illegal

harassment, false detentions, searches, imprisonments and arrests at the time said persons are lawfully upon private and public property in the County of Queens, City and State of New York, in denial of rights, privileges and immunities guaranteed Plaintiff, and other citizens by the Constitution of the United States.

47: This systematic pattern of conduct consists of a large number of individual acts of intimidation, false arrest and false imprisonment visited on Plaintiff, and other citizens by members of the Police Department of Defendant, THE CITY OF NEW YORK, acting in concert with persons unknown to Plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which Police Officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

48: Although Defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the Defendant THE CITY OF NEW YORK, has not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

49: The unlawful and illegal conduct of the Defendants, their agents, servants and/or employees and each of them, deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

(a) The right of Plaintiff to be secure in

his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

(b) The right of Plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendment of the Constitution of the United States; and,

(c) The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

50: That by reason of the aforesaid violations, false detention, search, arrest and false imprisonment, and malicious prosecution caused by the Defendants, their agents, servants and/or employees who conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of State of New York, and laws thereto, the Defendants, their agents, servants and/or employees violated 42 U.S.C. §1983 in that the Defendants, their agents, servants and/or employees acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the Plaintiff, thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his

character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging Plaintiff.

51: That by reason of the aforesaid false detention, search, arrest and imprisonment, malicious prosecution and deprivation of his rights and liberties as guaranteed by the aforementioned constitutions, by the Defendants, their agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the Plaintiff suffered great mental pain and anguish, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

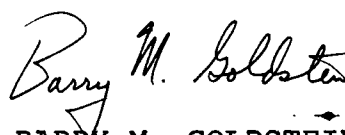
52: That by reason of the aforesaid, the Plaintiff requests the following relief:

- (a) Compensatory damages in the sum of FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS;
- (b) Punitive damages in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS;
- (c) An award of reasonable attorney's fees, costs and disbursements;
- (d) Plaintiff requests a trial by jury of all issues involved in this complaint;
- (e) Such other and further relief as to this court may seem just, and proper under the circumstances.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First through Fifth Causes of Action in a sum that is in excess of the monetary jurisdiction of all other lower

courts that would otherwise have jurisdiction; and Plaintiff demands judgment against the Defendants on the Sixth Cause of Action in the sum of FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS as and for Compensatory Damages, the sum of FIVE MILLION (\$5,000,000.00) DOLLARS as and for Punitive Damages, and reasonable attorney's fees, together with the costs and disbursements of this action.

Dated: Queens, New York
November 18, 2022



BARRY M. GOLDSTEIN
Attorney for Plaintiff
Office & P.O. Address
125-10 Queens Blvd., Suite 223
Kew Gardens, New York 11415

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

RODERICK BRUNSON,

PLAINTIFF

- AGAINST -

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DEPARTMENT, POLICE OFFICERS JAMES SARVIS,
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INCLUSIVE, THE LAST TEN NAMES BEING
FICTITIOUS AND UNKNOWN TO THE PLAINTIFF,
THE PERSONS INTENDED BEING INVOLVED IN
WRONGFUL ACTS AGAINST THE PLAINTIFF ON
OR ABOUT AND BETWEEN AUGUST 1, 2021 AND
MARCH 18, 2022,

DEFENDANTS.

SUMMONS & COMPLAINT

BARRY M. GOLDSTEIN
Attorney for Plaintiff
125-10 Queens Boulevard, Suite 223
Kew Gardens, NY 11415-1519
(718) 544-7100

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: November 21, 2022


BARRY M. GOLDSTEIN
